

Mohd. Daud v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 6 December 2013 · 2013 SCC OnLine All 11738 · Writ - C No. 66748 of 2013 · **Writ petition dismissed on the ground of alternative remedy**

HEADNOTE

A dispute about the correctness of a bill — here whether a bill could be raised, and recovery effected, after an alleged past permanent disconnection — is in pith and substance a billing dispute that must first be raised before the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ against the demand notice was not entertained; the petitioner was left to raise the dispute before the competent authority, who will look into and redress it in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing-correctness dispute must first go to the competent authority under Clause 6.5

QUESTION

Should a writ be entertained against a demand notice where the real grievance is that the bill itself was incorrectly raised (after an alleged permanent disconnection)?

HOLDING

No. The subject matter is the raising of the bill, which is a billing dispute to be raised in the first instance before the competent authority under Clause 6.5 of the Code. The writ is not entertained on the ground of alternative remedy; the petitioner may raise the dispute before the competent authority, who will redress it in accordance with law. ¶ (order)

PRINCIPLE TAGS

relegate-to-statutory-remedy A billing-correctness grievance is relegated to the Clause 6.5 competent authority; the writ court will not entertain it at the first instance. ¶ (order)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL WAS CORRECTLY RAISED AFTER THE ALLEGED PERMANENT DISCONNECTION

Left open to be decided by the competent authority under Clause 6.5; the Court expressed no view on the merits. ¶ (order)